

KMVTECH EDUCATION**INL1 · Module 6****Law of treaties**

Lesson: Conclusion to termination

Student Lesson Notes

Study with the online lessons. Prefer primary sources (Constitution, statutes, treaties, cases). © KMVTECH Education · September 2026.

1. CORE IDEA

A treaty is an international agreement concluded between States (or other subjects) in written form and governed by international law (VCLT Art. 2). The Vienna Convention on the Law of Treaties 1969 largely codifies custom.

Stages: negotiation, adoption, authentication, expression of consent (signature, ratification, accession), entry into force. Reservations are permitted unless prohibited or incompatible with object and purpose.

Interpretation: ordinary meaning of terms in context, in light of object and purpose (VCLT Arts. 31–33). Subsequent agreement and practice matter.

- Invalidity grounds are narrow (error, fraud, coercion, conflict with jus cogens). Termination may occur by consent, material breach, impossibility, fundamental change of circumstances (rebus sic stantibus — strictly applied).

2. DETAILED RULES AND APPLICATION

Example: Uganda's treaty practice follows constitutional ratification routes; reservations must be monitored for compatibility with core human-rights or trade instruments.

Always start with the text, then context and object/purpose; subsequent practice can clarify or modify.

3. UGANDA / PRACTICE, METHOD AND TRAPS

East African Community instruments illustrate successive treaties and protocols. Domestic implementing legislation often lags; external responsibility still attaches.

Exam trap: treating every fundamental change of circumstances as an easy exit from a treaty, or ignoring the prohibition on reservations to certain human-rights clauses.

Method: classify the instrument → check consent and entry into force → interpret under Arts. 31–33 → test any reservation, invalidity or termination claim.

This module supplies the toolkit for every treaty-based argument in later topics.

SELF-TEST QUESTIONS

Attempt these before the platform practice quiz.

1. Define a treaty under the VCLT.
2. List three ways a State may express consent.
3. What is the primary rule of treaty interpretation?
4. When is a reservation invalid?
5. Name two grounds of termination.
6. Why is *rebus sic stantibus* applied strictly?

Exam tip: Text, context, object and purpose — in that order.

CHECKLIST BEFORE YOU LEAVE THIS LESSON

- I can state the main instrument(s) or Cap number.
- I can explain the core rule in my own words.
- I can apply the rule to a short Uganda / regional fact pattern.
- I know the common exam trap for this topic.
- I know how this lesson links to the next module.

Next step: Complete the online practice quiz for this lesson, then continue on the platform.